

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 28, 2026, AT 8:30 A.M.

7. S-CV-0054582 ONESI, CHRISTINE v. CITY OF LINCOLN

Defendant City of Lincoln's Demurrer to Plaintiff Christine Onesi's Second Amended Complaint

Preliminary Matters

Defendant's requests for judicial notice are granted.

Ruling on Demurrer

Defendant demurs to the dangerous condition of public property cause of action in plaintiff's second amended complaint ("SAC") on the grounds the complaint does not allege facts sufficient to state the second cause of action. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, "[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits." (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

Government Code Section 835 provides that

a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either:

- (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or
- (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.

Government Code Section 830, subdivision (a) clarifies that "Dangerous condition" means a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property

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is used with due care in a manner in which it is reasonably foreseeable that it will be used.”

Plaintiffs alleging a dangerous condition of public property cause of action against public entities cannot generally allege what the condition is but instead “must specify in what manner the condition constituted a dangerous condition.” (*Summerfield v. City of Inglewood* (2023) 96 Cal.App.5th 983, 994.) To that end, “[a] dangerous condition exists when public property “is physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property itself,” or it possesses physical characteristics in its design, location, features or relationship to its surroundings that endanger users.” (*Ibid.* [internal quotation marks omitted].)

Government Code section 810, et seq. requires a plaintiff who maintains an action against a public entity to present a written claim to the public entity. The following information must be included in a notice of claim:

- (a) The name and post office address of the claimant.
 - (b) The post office address to which the person presenting the claim desires notices to be sent.
 - (c) The date, place and other circumstances of the occurrence or transaction which gave rise to the claim asserted.
 - (d) A general description of the indebtedness, obligation, injury, damage or loss incurred so far as it may be known at the time of presentation of the claim.
 - (e) The name or names of the public employee or employees causing the injury, damage, or loss, if known.
 - (f) The amount claimed if it totals less than ten thousand dollars (\$10,000) as of the date of presentation of the claim, including the estimated amount of any prospective injury, damage, or loss, insofar as it may be known at the time of the presentation of the claim, together with the basis of computation of the amount claimed. If the amount claimed exceeds ten thousand dollars (\$10,000), no dollar amount shall be included in the claim. However, it shall indicate whether the claim would be a limited civil case.
- (Gov. Code, § 910.)

The purpose of the claim is to place the public entity “in a position to investigate the facts as to the time and place and to make proper investigation of the condition of the premises and decide whether the case is one for settlement or litigation.” (*Silva v. Fresno County* (1944) 63 Cal.App.2d 253, 257–58.) Describing the location of the alleged incident is the most important aspect of the claim. (*Hall v. City of Los Angeles* (1941) 19 Cal.2d 198, 202.)

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Courts do not require perfect adherence to the claim requirements. Instead, the doctrine of substantial compliance applies. (*Connelly v. County of Fresno* (2006) 146 Cal.App.4th 29, 38.) “The test for substantial compliance is whether the fact of the filed claim discloses sufficient information to enable the public entity to make an adequate investigation of the claim’s merits and settle it without the expense of litigation.” (*Ibid.*) However, the doctrine of substantial compliance will not “cure total omission of an essential element form the claim or remedy a plaintiff’s failure to comply meaningfully with the statute.” (*Ibid.*)

Compliance with the claim presentation requirement is an element of plaintiff’s cause of action. (*Perez v. Golden Empire Transit Dist.* (2012) 209 Cal.App.4th 1228, 1236.)

Here, when taking the factual allegations in the SAC as true, plaintiff does not allege facts sufficient to state her filed claim with defendant complied or substantially complied with Government Code section 910. Specifically, the claim does not provide sufficient information about the location and circumstances surrounding the occurrence for defendant to be in a position to investigate the condition of the premises.

Defendant’s notice of insufficiency provided adequate information regarding the claim’s insufficiencies. (Gov. Code, § 910.8.) Plaintiff did not thereafter amend her claim.

Additionally, the time has lapsed for plaintiff to cure her deficient claim. (Gov. Code, §§ 910.6, 911.2, 911.4.)

Accordingly, defendant’s demurrer is sustained without leave to amend.

8. S-CV-0055904 AGOSTINI, CAROLYN v. AGOSTINI, SEBASTIEN

Hearing to Appoint Referee

On April 30, 2026, the court granted plaintiff’s motion for summary adjudication as to the second cause of action for partition by sale. The court’s ruling set a hearing for May 28, 2026, to allow the parties to meet and confer to select a mutually agreed upon referee.